(o) *Applicability of Priorities Regulation No. 1.* This order, and all transactions affected thereby, are subject to the provisions of Priorities Regulation No. 1, as amended from time to time, except to the extent that any provision hereof may be inconsistent therewith, in which case the provisions of this order shall govern.

(p) *Reports and other communications.* All reports which may be required to be filed, and all other communications concerning this order, should be addressed to: War Production Board, Washington, D. C. Ref.: E-1-b.

(P.D. Reg. 1, as amended, 6 F.R. 6680; W.P.B. Reg. 1, 7 F.R. 561; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; sec. 2 (a), Pub. Law 671, 76th Cong., as amended by Pub. Laws 89 and 507, 77th Cong.)

Issued this 19th day of December 1942.

ERNEST KANZLER,
*Director General for Operations.*

INTERPRETATION 1

The term "purchase order," as used in General Preference Order E-1-b, means a firm order for a machine tool which is accompanied either by specifications or by other description of the tool in sufficient detail to enable the producer to place the tool in his production schedules. (Issued May 15, 1942)

INTERPRETATION 2

AA ratings should not be sought for the purpose of expediting deliveries of machine tools to service purchasers. General Preference Order E-1-b provides that deliveries to service purchasers, who are on the Numerical Master Preference List, Revision No. 3, shall be preferred to and shall take precedence over deliveries to service purchasers who are not on the list, irrespective of the preference ratings of the purchasers who are not on the list. It also provides that as between deliveries which have conflicting delivery dates to be made to two or more service purchasers both on the list, deliveries shall be made according to their respective urgency standings specified on such list, whether the preference ratings of such service purchasers are the same or are different. The highest urgency standing is No. 1.

Accordingly, the issuance of an AA rating to a service purchaser whose name does not appear on the list merely places him ahead of other service purchasers who likewise are not on the list; but he remains subordinate to all service purchasers who have urgency standings, irrespective of the preference ratings of the latter. The issuance of an AA rating to a service purchaser whose name appears on the list has no effect whatever. Deliveries to him are still determined solely by his urgency standing.

Where it is desired to accelerate the delivery date of a tool to a service purchaser, a specific order can be obtained from the Director General for Operations diverting a tool from another service purchaser for this purpose.

AA ratings may continue to be issued in appropriate cases for the purpose of expediting deliveries of machine tools to foreign and other purchasers, to whom urgency standings have not been assigned. (Issued June 19, 1942)

INTERPRETATION 3

The principles set forth in Interpretation No. 2 of General Preference Order No. E-1-b have not been altered by the issuance of AAA and AA-1, AA-2, AA-3, and AA-4 ratings pursuant to Priorities Regulation No. 12.

The application of such a higher rating to a delivery of a machine tool to a service purchaser who has an urgency standing does not change in any way the date of delivery of the tool. The date of delivery will still be determined solely by the urgency standing and the required delivery date.

The application of such a higher rating to a delivery of a machine tool to a service purchaser who does not have an urgency standing merely advances the delivery over those to other service purchasers who are members of the same group, and who likewise have no urgency standings; and it operates solely within the percentage quota assigned to that group. The higher rating does not affect any deliveries to service purchasers to whom urgency standings have been assigned. It likewise does not affect any deliveries scheduled to be made within the thirty or sixty-day frozen period provided by paragraph (1) of the order. (Issued July 30, 1942)

INTERPRETATION 4

An urgency standing should not be used in connection with a Preference Rating Certificate PD-1A. General Preference Order E-1-b defines as service purchasers those whose preference rating certificates or whose endorsed purchase orders show that the preference rating was assigned by an original Preference Rating Certificate PD-3, PD-3A, or PD-4, or by Preference Rating Order P-19-h. Hence, the holder of a PD-1A Certificate cannot be a service purchaser as he is excluded from the definition.

Urgency standings govern the sequence of deliveries of machine tools as between service purchasers of the same group within their respective percentage quotas. If a person seeking to procure a machine tool is not a service purchaser he cannot be a member of one of the service purchasers groups, and the urgency standing therefore has no effect upon the delivery of the tool to him. The tool must come out of the 25 percent quota assigned to foreign and other purchasers, and the sequence of its delivery will be determined solely by its required delivery date and its preference rating, in the absence of a specific direction of the Director General for Operations. (Issued August 10, 1942)

[F. R. Doc. 42-13654; Filed, December 19, 1942; 12:17 p. m.]

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## PART 1076—PLUMBING AND HEATING SIMPLIFICATION

[Schedule VII to Limitation Order L-42, Revoked]

Section 1076.8, *Schedule VII to Limitation Order L-42,* is hereby revoked.

(P.D. Reg. 1, as amended, 6 F.R. 6680; W.P.B. Reg. 1, 7 F.R. 561; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; sec. 2 (a), Pub. Law 671, 76th Cong., as amended by Pub. Laws 89 and 507, 77th Cong.)

Issued this 19th day of December 1942.

ERNEST KANZLER,
*Director General for Operations.*

[F. R. Doc. 42-13649; Filed, December 19, 1942; 11:41 a. m.]

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## PART 1076—PLUMBING AND HEATING SIMPLIFICATION

[Schedule IX to Limitation Order L-42, Revoked]

Section 1076.11, *Schedule IX to Limitation Order L-42,* is hereby revoked.

(P.D. Reg. 1, as amended, 6 F.R. 6680; W.P.B. Reg. 1, 7 F.R. 561; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; sec. 2 (a), Pub. Law 671, 76th Cong., as amended by Pub. Laws 89 and 507, 77th Cong.)

Issued this 19th day of December 1942.

ERNEST KANZLER,
*Director General for Operations.*

[F. R. Doc. 42-13650; Filed, December 19, 1942; 11:42 a. m.]

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## PART 1154—METAL PLUMBING AND HEATING EQUIPMENT

[Limitation Order L-79 as amended Dec. 16, 1942 [1]]

The fulfillment of requirements for the defense of the United States has created a shortage in the supply of metals for defense, for private account and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 1154.1 *General Limitation Order L-79*—(a) *Definitions.* For the purposes of this order:

(1) "Metal plumbing equipment" means any of the following items which are composed of metal to the extent of 50% or more by weight:

(i) Plumbing fixtures, including only bathtubs, closet hoppers, closet tanks, grease interceptors, laundry trays, lavatories, shower receptors, shower stalls, sinks, sink and laundry tray combinations, and urinals.

(ii) Plumbing fixture fittings and trim.

(iii) Water heating equipment, including only direct fired water heaters which use coal, oil or gas as fuel, indirect type water heaters, hot water storage tanks and range boilers.

(iv) Cooking and baking equipment using coal, oil or gas as fuel for cooking, baking, or heating food, or for heating dishes or kitchen utensils, except machinery the manufacture or distribution of which is restricted by General Limitation Order No. L-83, as amended from time to time.

(2) "Metal heating equipment" means any of the following items which is designed to provide heat for the interior of a building and which is composed of metal to the extent of 50% or more by weight:

(i) Steam and hot water heating boilers which use coal or oil as fuel.

(ii) Cast iron heating radiators (other than electric steam radiators) including, but not limited to, cast iron tubular radiators and cast iron convectors.

(iii) Hot water circulator pumps, vacuum pumps, and condensation pumps.

(iv) Warm air furnaces which use coal or oil as fuel.

(v) Heating stoves and space heaters which use coal, oil or gas as fuel, except gas fired floor furnaces.

(vi) Oil burners.

(vii) Metal fuel oil tanks.

[1] This document is a restatement of Amendment 3 of Limitation Order L-79 which appeared in the FEDERAL REGISTER of December 18, 1942, page 10573, and reflects the order in its completed form as of December 16, 1942.